

STATE OF NEW YORK

4490--A

2025-2026 Regular Sessions

IN SENATE

February 5, 2025

Introduced by Sen. HELMING -- read twice and ordered printed, and when printed to be committed to the Committee on Civil Service and Pensions -- recommitted to the Committee on Civil Service and Pensions in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT in relation to authorizing Christine Hasseler to apply for a recalculation of her retirement benefits

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Notwithstanding any provision of law to the contrary,
2 Christine Hasseler, who joined the New York state teachers' retirement
3 system as a Tier 1 member on September 1, 1970, who retired from such
4 system on August 12, 2004, and who for reasons not ascribable to her own
5 negligence, did not receive her retirement incentive payments from her
6 employer by the deadline, shall have her final average salary and
7 pension benefit recalculated to include such payments, without regard to
8 the actual date of the receipt of such payments. The increase in bene-
9 fit will be payable retroactive to her date of retirement.

10 § 2. All costs of implementing the provisions of this act shall be
11 borne by the employers of members of the New York state teachers'
12 retirement system.

13 § 3. This act shall take effect immediately.

FISCAL NOTE.--Pursuant to Legislative Law, Section 50:

Bill Description:

This fiscal note is prepared for legislative bill draft #01080-02-5. This bill would allow Christine Hasseler, a retired Tier 1 member of the New York State Teachers' Retirement System (NYSTRS), to have her pension benefit recalculated to include retirement incentive payments she received regardless of when those retirement incentive payments were made. Ms. Hasseler's pension would be recalculated with retroactive

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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adjustment to payments made since her date of retirement of August 12, 2004.

Cost:

The cost of this benefit is equal to the increase in the present value of liabilities, which is estimated to be \$68,000. This cost would be borne by the employers of members of the New York State Teachers' Retirement System.

Data:

Member data as of June 30, 2025, prepared for the most recent actuarial valuation was used in determining this cost. The most recent data distributions and statistics can be found in the System's Annual Report for the fiscal year ended June 30, 2025. System assets are as reported in the System's financial statements which can be found in the System's Annual Report. This data will also be provided in the System's Actuarial Valuation Report as of June 30, 2025.

Methods and Assumptions:

A summary of actuarial assumptions and methods will be provided in the System's Actuarial Valuation Report as of June 30, 2025. Further details can be found in the most recent Recommended Actuarial Assumptions 2025 Report.

Actuarial Certification:

We, the undersigned actuaries for the New York State Teachers' Retirement System, certify the following:

1. The actuarial assumptions, methods, and data used are reasonable for the purposes of this fiscal note, internally consistent and are in accordance with standards of practice prescribed by the Actuarial Standards Board and generally accepted actuarial principles and procedures.

2. We relied on member data supplied by the participating employers of the New York State Teachers' Retirement System and assets as supplied in the annual Financial Statements by NYSTRS' Finance Department.

3. Results were prepared based on our current understanding of the proposal as of the date of this fiscal note. If the language or our understanding of the proposal changes, the results could change and require the issuance of a new fiscal note. The next annual update of the actuarial valuation could also produce different results. Results should not be relied upon for any other purpose.

4. This fiscal note was prepared in accordance with New York State Retirement and Social Security Law, New York State Education Law, applicable Internal Revenue Code, and accepted actuarial standards of practice as of the date of this fiscal note. This fiscal note does not constitute a legal opinion on the viability of this legislative proposal.

5. We are members of the American Academy of Actuaries and the Society of Actuaries, and we meet the Qualification Standards of the American Academy of Actuaries to render the actuarial opinion contained herein. We are currently compliant with the Continuing Professional Development Requirement of the Society of Actuaries.

Fiscal Note Identification:

This Fiscal Note, 2026-14, dated January 29, 2026, was prepared by the Office of the Actuary of the New York State Teachers' Retirement System and is intended for use only during the 2026 Legislative Session.